

25STCV25862 25STCV25862

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-09
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Case Number: 25STCV25862 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LILLY MING INTERNATIONAL, INC.,

Plaintiff,

vs.

MILLENNIUM BIOMEDICAL, INC.,

Defendant.

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CASE NO.: 25STCV25862

[TENTATIVE] ORDER OVERRULING DEMURRER

Dept. 506

8:30 a.m.

July 9, 2026

On

December 10, 2025, Plaintiff Lilly Ming International Inc. filed a first amended complaint ("FAC") against Defendant Millennium Biomedical Inc., alleging (1) breach of contract, (2) account stated, (3) open book account, and (4) accounting.

On

January 9, 2026, Defendant filed a demurrer.

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

Defendant

argues that Plaintiff lacks standing because the first cause of action "fails to satisfy the first element of a breach of contract claim, that Plaintiff and Defendant entered into the Agreement" when the contract was entered into between Defendant and Xiugao Liao, not with Plaintiff. (Demurrer at pp. 8-10.) But Defendant also acknowledges

that the FAC alleges that Plaintiff "is the assignee of the rights, obligations, and duties of Mr. Liao under that 2004 Agreement, and that assignment was effective as of September 1, 2004." (FAC ¶ 6; Demurrer at pp. 8-9.)

Defendant

also argues that the second, third, and fourth causes of action "are based upon the same facts as the breach of contract cause of action, [so] the common counts must fall with Plaintiff's breach of contract cause of action." (Demurrer at p. 10.) Because at this stage the FAC sufficiently alleges that Plaintiff is an assignee, the demurrer is overruled.

The

demurrer is OVERRULED.

Defendant

is ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 9th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court